

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 9, 2018

Honorable Bernard J. Schwartz
Judge of the Superior Court
County of Riverside
30755-D Auld Road, Ste 1226
Murrieta, CA 92563

Re: Whelan, Lucas William
CDC No.: AI4020
Case No.: SWF025883
Date of Sentence: August 26, 2011

Dear Honorable Bernard J. Schwartz:

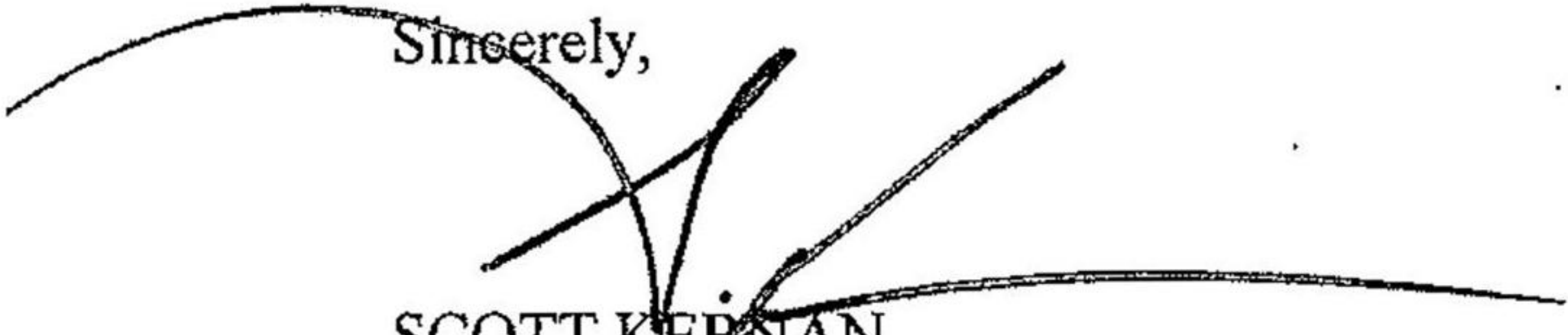
The purpose of this letter is to provide the court with authority to resentence Lucas William Whelan pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Whelan was sentenced in 2011, and was convicted of section 245, subdivision (a)(1), Assault w/Deadly. The trial court sentenced inmate Whelan on August 26, 2011. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Whelan's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Whelan's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,



SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Amended Felony Information

cc: Honorable Becky Lynn Dugan, Riverside County Presiding Judge
Riverside District Attorney
Private Attorney

DNA Collected

Prop 69 - court order

43
CR-290Date 9-01-11
N221ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]Per Riverside Sheriff's Department
SUPERIOR COURT OF CALIFORNIA, COUNTY OF:
RiversidePEOPLE OF THE STATE OF CALIFORNIA vs.
DEFENDANT: LUCAS WILLIAM WHELAN

DOB: 04/22/1991

SWF025883

-A

FILED
SUPERIOR COURT OF CALIFORNIA
COUNTY OF RIVERSIDE

AKA:

CII#: A26952965

BOOKING #:

☐ NOT PRESENTCOMMITMENT TO STATE PRISON
ABSTRACT OF JUDGMENT☐ AMENDED
ABSTRACTDATE OF HEARING
08/26/2011DEPT. NO.
44JUDGE
Bernard J. Schwartz

CLERK

REPORTER

PROBATION NO. OR PROBATION
OFFICER☐ IMMEDIATE SENTENCINGCOUNSEL FOR PEOPLE
Erica SchwartzCOUNSEL FOR DEFENDANT
CDL Sara Jewett by Richard Bri☐ APPTD

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment
(number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO/DAY/YR)	CONVICTED BY			TERM (L/M/Y)	CONCURRENT	CONSECUTIVE 1A VIOLENT	CONSECUTIVE 1C NON-VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (enter in item 5)	634 STAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA								YRS.	MOS.
2	PC	245(A)(1)	Assault w/deadly	08	08/11/11			X	U							4	
4	PC	245(A)(1)	Assault w/deadly	08	08/11/11			X	M		X					1	

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
2	PC 12022.7(a)	03	PC 186.22(B)	10					13
4	PC 12022.7(a)	01	PC 186.22(B)	S					1

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL

4. ☐ Defendant was sentenced per ☐ PC 667(b)-(i) or PC 1170.12 (two-strikes)☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed (Paper Commitment). Deft. ordered to report to Incal Parole Office upon release.

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES:

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME EXCLUDING COUNTY JAIL TERM:

19

This form is prescribed under PC 1213.5 to satisfy the requirements of PC1213 for determinate sentences. Attachments may be used but must be referred to in this document.

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SWF025883

-A

-B

-C

-D

9. FINANCIAL OBLIGATIONS (including any applicable penalty assessments):

a. Restitution Fine(s):

Case A: \$ 400.00 per PC 1202.4(b) forthwith per PC 2085.5; \$ 400.00 per PC 1202.45(b) suspended unless parole is revoked
\$ _____ per PC 1202.44 is now due, probation having been revoked.

Case B: \$ _____ per PC 1202.4(b) forthwith per PC 2085.5; \$ _____ per PC 1202.45(b) suspended unless parole is revoked
\$ _____ per PC 1202.44 is now due, probation having been revoked.

Case C: \$ _____ per PC 1202.4(b) forthwith per PC 2085.5; \$ _____ per PC 1202.45(b) suspended unless parole is revoked
\$ _____ per PC 1202.44 is now due, probation having been revoked.

Case D: \$ _____ per PC 1202.4(b) forthwith per PC 2085.5; \$ _____ per PC 1202.45(b) suspended unless parole is revoked
\$ _____ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$ _____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

Case B: \$ _____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

Case C: \$ _____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

Case D: \$ _____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

☐ * Victim names(s), if known, and amount breakdown in item 11, below ☐ * Victim names(s) in probation officer's report.

c. Fine(s):

Case A: \$ _____ per PC 1202.5. \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ Includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ _____ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case B: \$ _____ per PC 1202.5. \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ Includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ _____ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case C: \$ _____ per PC 1202.5. \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ Includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ _____ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case D: \$ _____ per PC 1202.5. \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ Includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ _____ Drug Program Fee per HS 11372.7(a) for each qualifying offense

d. Court Security Fee: \$ 80.00 per PC 1465.810. TESTING a. ☐ Compliance with PC 296 verified b. ☒ DNA Pursuant to PC 296 c. ☐ AIDS pursuant to PC 1202.1 d. ☐ other (specify):

11. Other orders (specify):

Pay criminal conviction assessment fee of \$60.00 [\$30 per convicted charge]; Payable to Division of Adult Institutions (GC 70373)

12. IMMEDIATE SENTENCING:

☐ Probation to prepare and submit post-sentence report to CDCR per PC 1203c.

Defendant's race/national origin: Hispanic

13. EXECUTION OF SENTENCE IMPOSED

- a. ☒ at initial sentencing hearing
- b. ☐ at resentencing per decision on appeal
- c. ☐ after revocation of probation
- d. ☐ at resentencing per recall of commitment (PC 1170(d).)
- e. ☐ Other (specify):

14. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	1335	1161	174 ☒ 4019 2933.1
B			☐ 4019 ☐ 2933.1
C			☐ 4019 ☐ 2933.1
D			☐ 4019 ☐ 2933.1
Date Sentenced Pronounced:		Time Served in State Institution:	
08/26/11		☐ DMH ☐ CDCR ☐ CRC	

15. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.

To be delivered to ☒ the reception center designated by the director of the California Department of Corrections
☐ other (specify):

I hereby certify the foregoing to be a correct abstract of the judgment made in this action

DEPUTY'S SIGNATURE

DATE

08/29/2011